



Notification Waiver Determination

SAS Trustee Corporation – Australia Pacific Airport Corporation

Acquisition	SAS Trustee Corporation (STC), as trustee of the New South Wales Superannuation Scheme, applied for a notification waiver in respect of its proposed acquisition of additional shares in Australia Pacific Airports Corporation Limited (APAC), up to an additional maximum proportion of shares which is below 10% of the issued share capital, through a process being undertaken in accordance with the APAC Shareholders' Deed, as described in the documents provided as part of the application (the Acquisition). The Acquisition follows a decision of the Supreme Court of New South Wales in May 2026 that upheld the validity of a notice of default issued to Dexu Capital Investment Services Pty Ltd (Dexu) on 15 May 2025. The Acquisition concerns APAC shares held by Dexu that are to be divested in accordance with the process contained in the Shareholders' Deed which makes the shares available to existing, non-defaulting shareholders under a pre-emptive share acquisition regime.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 July 2026

Parties to the Acquisition	The acquirer, STC, is the trustee of the New South Wales State Superannuation Scheme, constituted by the <i>State Authorities Superannuation Act 1987</i> (NSW) and acts as an institutional investor, investing in a diversified portfolio of assets. The target, APAC, holds long-term leases to own and operate Melbourne Airport (Victoria) and Launceston Airport (Tasmania). STC currently holds an 18.47% interest in APAC.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: STC already holds an interest in APAC, and the Acquisition does not create any new horizontal overlap between STC and APAC in the supply of airport infrastructure and related services in Australia

	b. other than STC's existing interest in APAC, there is no horizontal overlap between STC's portfolio and APAC in the supply of airport infrastructure and related services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act